

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 1703773

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: ALEXANDER
KOPANICKY

and

RESPONDENT: NUENGRUETHAI
KOPANICKY

NATURE OF PROCEEDINGS: REVIEW OF REPORTS HEARING – CHILD CUSTODY

RULING

This matter was continued for custody/visitation review regarding the parties' timeshare with their son, Patrick (DOB 12/8/2015). At the last Court hearing Father stated he had more information to provide, so the parties were re-referred to Family Court Services ("FCS") for the current hearing.

Father provided FCS with 2024-2026 reports from Child & Family Services ("CFS," formerly known as "CPS") and a 5/11/2026 letter from Child Therapy Institute, where Patrick has started with a private therapist.

Mother, Father and Patrick were all interviewed by FCS. Mother still lives in Sacramento, and Father moved from San Anselmo to Sausalito. Per the Court's Findings and Order After Hearing filed 4/24/2026, Patrick lives primarily with Father and is to be in Mother's care on the 1st, 3rd and 5th (if any) weekends of the month from Saturday at 10:00 am to Sunday at 6:00 pm. Mother reports that she is unable to do three weekends a month since she lives in Sacramento. She looks forward to more time with Patrick in the summer and plans to have him for the second half of the summer.

The Court has reviewed and considered the current FCS report, as well as prior FCS reports, and as well as both parties' positions. The Court is concerned about Patrick while in Mother's care given the number complaints made to CFS and that so few of the complaints are actually investigated (only 5 out of 33 referrals). Of the 5 cases investigated, all allegations were deemed to be unfounded, except for one for emotional abuse, which was "inconclusive." As a result, no cases have been opened. Patrick consistently reports verbal and physical abuse by his Mother and does not want to be with her. It is hoped that we will gain a better understanding now that Patrick is in therapy.

Having reviewed and considered the updated information, as well as the current and former FCS Reports & Recommendations, the Court finds that it is in Patrick's best interest to adopt the current FCS recommendations, as modified below. Therefore, the Court orders as follows:

1. All current orders shall remain in effect with the following additions and modifications:
2. The current orders regarding the school year timeshare and Holidays/Vacations (except for summer) shall remain in effect.
3. **Summer of 2026:** The parties will not equally share the summer with Patrick. Patrick shall be with Mother on the following schedule (and with Father the remainder of the time):
 - Monday, July 13th at 12:00 to Monday, July 20th at 12:00
 - Monday, August 3rd at 12:00 to Monday, August 10th at 12:00
4. Patrick shall continue in counseling at Child Therapy Institute at the frequency and duration recommended by the institute. Both parents shall follow any recommendations made by the counselor.
5. The family is re-referred to Family Court Services, with a review hearing set in Department E at 9:00 am on 10/23/2026. A custody review hearing is set for October 23, 2026, at 9:00 am in Department E. The Court requests that FCS speak with Patrick's therapist before preparing its next Report & Recommendations.

SO ORDERED.

The Court will prepare the order per Rule 5.125, CA Rules of Court.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 1803029

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: JOHN GAETA

and

RESPONDENT: ROSE LASTON

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

This matter was continued for hearing on Petitioner/Husband's Request for Order ("RFO") to terminate spousal support. On 2/13/2026 the Court set spousal support at zero effective as of 12/23/26. On 3/20/2026, Husband was ordered to increase his work search efforts, making at least 5 employment inquiries per week, and to provide the Court with a 2026 year-to-date profit & loss statement for Ai Media, a Declaration updating the Court on how he is meeting his monthly expenses, and an updated Income & Expense Declaration.

On 6/12/2026 Respondent/Wife filed a Supplemental Declaration, an updated Income & Expense Declaration with paystubs attached and, and she lodged her 2025 income tax returns with the Court. On 6/16/2026 Husband lodged his 2025 income tax returns. In disregard of the Court's 3/20/2026 Order, Husband failed to provide an updated Income & Expense Declaration, profit & loss statement for Ai Media, or a Declaration updating the Court on how he is meeting his monthly expenses.

Husband's 2025 Form 1040 shows his total income for the year to be \$172,561 (\$14,380/month), which includes \$52 in wages, \$24,723 in pensions/annuities and \$147,786 in business income. He paid real property taxes of \$13,387 (\$1,116/month) in mortgage interest deduction of \$27,074 (\$2,256/month).

Due to Husband's failure to abide by the Court's order to demonstrate meaningful work search efforts and to provide the financial information he was ordered to provide, the Court, adopts the Wife's proposal, and orders as follows:

1. Effective May 1, 2026, Husband shall pay to Wife, as and spousal support, the sum of \$2,700/month, payable on or before the 1st day of each month.
2. Spousal support shall continue until Wife remarries, either party dies, or further Court order.

3. Spousal support is neither taxable to the recipient nor deductible by the payor.

SO ORDERED.

Counsel for Wife shall prepare the order.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 1903264

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: ASHLEY FARRAH DAVID	
and	
RESPONDENT: BRENDAN OWAIN- MICHAEL DAVID	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

This matter is set for hearing on Petitioner/Mother’s 4/30/2026 Amended Request for Order (“RFO”) re: modification of the existing 4/16/2025 child custody/visitation order concerning the parties’ children, John Jay (DOB 3/17/2017) and Penelope (DOB 10/11/2018). The 2025 order provides that the parties share joint legal and physical custody; and that the children are with Mother during the school year on alternate weekends from Friday after school through Sunday at 7 pm, and on each Thursday for an afternoon/evening visit until 7 pm. During the summers, the parties alternate weeks.

Mother requests she be given joint legal custody with joint physical custody. She lives in Fairfax, Father lives in San Francisco, and the children attend school at San Francisco Waldorf School. However, as of 5/27/2026 John Jay was suspended for threatening to seriously harm himself and another child. John Jay is currently enrolled in KFS School for children with ADHD; and he is also being assigned a child psychiatrist and therapist through Richmond Area Multi Services (“RAMS”) in San Francisco. Mother requests that the children live with her and attend Manor Elementary school in her neighborhood; she believes they will be better served in public school, and is very concerned about John-Jay’s behavioral issues, which she says have continued to become more serious. The Waldorf School confirmed that the instances of John Jay’s behavioral dysregulation have escalated. She is also concerned that the Waldorf School does not respond to her inquiries regarding the children, and Father has made a number of unilateral decisions regarding the children without consulting with her.

Father filed a Responsive Declaration on 6/4/2026. He states that Mother does not exercise the time-share she already has with the children, often foregoing time she could have with them, does not attend the children’s school activities or conferences, or any special events, and often asks Father to pick up the children, saying she is not well. Father is open to changing to a public

school for John Jay but wants to keep him in school in San Francisco. Father is concerned about Mother's being able to maintain stable housing for the children.

The parties were referred to Family Court Services ("FCS"), and the Custody Recommending Counselor interviewed Mother, Father, John Jay and Penelope. The Court has reviewed and considered the written submissions by the parties, the history of the case, and the current and previous FCS Reports & Recommendations and agrees that recommendations are challenging. All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. John Jay shall be assessed by a child psychiatrist regarding his emotional dysregulation episodes. Parents shall follow all reasonable medical recommendations following this assessment including ADHD medication or other medication if recommended. Both parents shall provide input to the child psychiatrist during this assessment.

2. John Jay shall engage in therapy as recommended by his assessment with the child psychiatrist.

3. Summers: Parents shall continue with an alternating week schedule for the remainder of the summer (except for pre-scheduled summer vacation periods for each parent). Each parent shall have one two-week block of vacation time with the children each summer. Parents shall select their vacation blocks by April 1 of each year. Mother shall have first choice in odd years. Father shall have first choice in even years. For the remaining weeks of summer that are not scheduled vacation blocks, parents shall continue to alternate weeks.

4. Commencing school year 2026 – 2027, which begins on 8/18/2026, the children shall be enrolled at Manor Elementary in Mother's school district for a trial period of one academic year.

5. If recommended by the school district in Marin, John Jay shall undergo additional educational and behavioral assessments to determine what support services he requires at school.

6. The children shall be in Mother's custody during the school week (Monday through Friday) and the second weekend of each month when the 2026 – 2027 school year commences. The children shall be in Father's custody on the first, third, and fourth weekends of the month from Friday after school through Sunday 7 PM. If the morning commute from Father's home in San Francisco to Manor is less than 35 minutes (or some other length of commute time deemed reasonable by the court), the children may spend Sunday overnights with Father on his weekends, and Father (or another responsible adult designated by Father) shall drop the children off at school Monday morning. Sunday overnights are contingent on the children getting to school on time on Mondays.

a. If Monday is a school holiday, the children shall remain in Father's care until Tuesday morning return to school (or if Father is unable to get the children to school on time, then Sunday at 7 pm).

b. The parents shall equally share time with the children during school breaks.

7. The children shall attend school consistently and regularly. The children attending Manor and living with Mother during the school week is contingent on Mother ensuring the children get to school on time and attend consistently.

a. Mother shall not relocate with the children outside of the Manor school district without a Court order.

8. Neither parent shall make unilateral decisions regarding the children's health care and education, and each shall ensure that the other parent is kept advised of any and all developments regarding the children's health, safety and education, including insuring that all providers and educators are aware that both parents need to be advised of any developments, problems or concerns regarding the children.

9. Corporal punishment shall not be inflicted on the children by any caregiver who takes care of the children. This includes slapping, pinching, etc.

10. The children shall not be exposed to violent outbursts of anger by other adults who care for the children when in the home of either parent. This includes objects being thrown in anger, etc.

11. Alcohol shall not be left accessible to the children in either parent's home.

12. Father shall not consume alcohol to the point of impairment when he has custody of the children.

13. Mother shall not be under the influence of prescription medications that would impair her ability to appropriately parent the children. If Mother is unable to care for the children due to her medical issues, she shall give Father first right of refusal to care for the children.

14. Per an agreement reached in mediation, parents shall immediately commence co-parenting counseling.

15. Penelope shall be assessed by a therapist to see if she could benefit from participating in therapy.

16. Parents shall not interrogate the children about their interviews with FCS, nor shall they allow other family members to do so. The children shall not be made to suffer emotional retaliation for what they reported during their interviews. This FCS report shall not be shared with extended family members or anyone else.

17. A custody review hearing is set for 1/15/2027 to assess how the children are doing in their new school placement.

SO ORDERED.

The Court will prepare the order per Rule 5.125, CA Rules of Court.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 2101418

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: KIRSTEN TOLSTRUP

and

RESPONDENT: MASSOUD AKHTARI

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

This matter is set for hearing on Petitioner/Wife's 4/6/2026 Request for Order ("RFO") to terminate the spousal support she pays Respondent/Husband of \$5,000/month.

The Court notes that Wife has not complied with Marin County Local Rule, Family 7.8(F), which requires the parties to submit an Address Verification Declaration (Local Form FL070). Without the Address Verification, the Court has no way of knowing if Respondent/Husband was properly served. Therefore, the Court orders as follows:

1. Wife shall comply with Marin County Local Rule, Family 7.8(F) forthwith.
2. The matter is continued for hearing to 8/14/2026 at 9:00 am in Department E to provide Wife with sufficient time to confirm Husband's address, serve him, and to provide Husband sufficient time to respond.

SO ORDERED.

The Court will prepare the order.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 2102370

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: SHIRLEY SANTA ROSA

and

RESPONDENT: BRIAN ERIC NORRIS

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – ENFORCE JUDGMENT; TERMS OF MSA

RULING

This matter is set for hearing on Petitioner/Wife's 5/15/2026 Request for Order ("RFO") re: enforcement of Judgment. Together with the RFO and supporting Declaration Wife filed a Memorandum of Points and Authorities. Wife states that the parties signed a Marital Settlement Agreement ("MSA"), which was incorporated into the Judgment of Dissolution entered on 2/6/2026. According to Wife, Respondent/Husband's Schedule of Assets & Debts showed a community debt owing on a Capital One credit card of \$54,600.03; however, that liability was not included in the parties' MSA. Wife asks the Court to enforce the settlement agreement as is and order that the Capital One debt is Husband's separate obligation. Alternatively, Wife requests the Court to reopen allocation of all marital credit card debts so they can be equitably addressed. Wife further seeks attorneys' fees and costs per Family Code §§ 271, 2030 and 2032.

Husband filed a Responsive Declaration on 6/12/2026 opposing Wife's request. He states the Capital One debt was not used for his personal benefit; it was used during the marriage for the parties' community business, Basti, Inc., and both parties received the benefit of the debt. Due to nonpayment, Capital One put a lien on the parties' residence, and the lien was paid from the sales proceeds when the residence was sold. Husband acknowledges the debt was not identified in the MSA but was inadvertently omitted, but its omission should not mean it automatically becomes his separate property obligation. Husband argues that the debt should be treated as an omitted liability per Family Code § 2556 and evenly divided. Husband suggests that, alternatively, if the Court believes further analysis of required regarding the parties' credit card obligations, it should appoint an Evidence Code section 730 expert to determine proper allocation of the credit card debt. Husband also asks that Wife's request for attorneys' fees be denied.

First, the Court will not reopen the issue of the allocation of all of the parties' credit card debts. There is one credit card debt that is in dispute, and it is the only issue the Court will address. Second, the Court needs more information to address the issue at hand.

Appearances required.

SO ORDERED.

Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument by 4:00 pm on the court day before the hearing, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0001678

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: TRACY ALEXANDRA MEJIA VILLAFAN	
and	
RESPONDENT: NORMAND JEFFRY SUAREZ REYES	

NATURE OF PROCEEDINGS: REVIEW HEARING – COURT-ORDERED CLASSES;
VISITATION

RULING

This matter was continued for further hearing from 3/27/2026 for receipt of proof of Petitioner/Mother's completion of a 12-week domestic violence class, as well as proof of completion of any other courses.

Appearances required.

SO ORDERED.

The Court will prepare the order per Rule 5.125, CA Rules of Court.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0001852

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: RANDALL CRAIL

and

RESPONDENT: ARIADNE MUNIZ-CRAIL

NATURE OF PROCEEDINGS: 1) REVIEW HEARING – CHILD CUSTODY/VISITATION
2) CASE PROGRESS CONFERENCE

RULING

This matter is set for (1) review hearing on custody/visitation regarding the parties' daughter, Bella (DOB 3/1/2021) and (2) Case Progress Conference.

Custody Review

Neither party has filed any updates with regard to the custody review. Both parties met with Family Court Services (FCS"), separately, on 6/10/2026, and FCS filed its Report & Recommendations with the Court on 6/16/2026.

1. All current orders shall remain in effect with the following additions/modifications:

Timeshare Schedule

2. Bella shall be with Randall during the following times (and with Ari the remainder of the time). Week #1 and Week #2 shall be rotating:
 - a. **Week #1:** Thursday after school or camp (or 3:00 p.m. if school or camp is not in session) until Friday return to school or camp (or 7:00 p.m. if school or camp is not in session).
 - b. **Week #2:** Thursday after school or camp (or 3:00 p.m. if school or camp is not in session) until Monday return to school or camp (or 9:00 a.m. if school or camp is not in session).

3. If Monday is a school holiday not otherwise specified in the Holidays/Vacations schedule, then Bella shall remain with the custodial parent of the preceding weekend until Tuesday return to school.

Holidays/Vacations

4. Mother's Day/Father's Day: Bella shall be with Ari every year on Mother's Day and with Randall every year on Father's Day.
5. Thanksgiving: Thanksgiving shall be from Wednesday at 5:00 p.m. to Monday return to school. Bella shall be with Randall in the even-numbered years and with Ari in the odd.
6. Christmas: Christmas shall be from December 23rd at 10:00 a.m. to December 27th at 7:00 p.m. Bella shall be with Ari in the even-numbered years and with Randall in the odd.
7. New Years: New Years shall be from December 29th at 10:00 a.m. to January 2nd at 7:00 p.m. Bella shall be with Randall in the even-numbered years and with Ari in the odd-numbered years.

Collateral Issues

8. Bella shall continue at Noah's Ark for the 2026-2027 school year unless otherwise agreed upon by the parents.
9. If the parents are unable to agree about where Bella shall attend school for the 2027-2028 school year and beyond, then Bella shall attend the highest rated public school within their two school districts.
10. If either parent is unable to care for Bella overnight during their custodial time, then they shall give the other parent the right of first refusal to care for Bella.
11. Neither parent shall show up at the other parents' home without prior approval to do so.
12. Neither parent shall put Bella in the middle of their issues or expose her to any adult issues.
13. The parents shall use Our Family Wizard for their communication as well as any video calls with Bella.

Case Progress Conference

A Case Progress Conference ("CPC") Questionnaire was filed on behalf of Father on 6/10/2026, which confirms Father exchanged his Preliminary Declarations of Disclosure ("PDD's") in

9/2025, and that Father needs no additional discovery. Mother did not file a CPC, but the court file reflects Mother filed a Declaration in 4/2026 confirming her exchange of her PDDs.

The parties should meet and confer to see if they are ready to set a Bench Bar Settlement Conference, and if so, the Court will do so at the next CPC, which is set for 7/27/2026 at 9:00 am in Department E.

SO ORDERED.

Note: A letter to Father was returned to the Court on 6/12/2026 with the notations “Return to Sender” and “Unable to Forward” from his address at 1500 Lincoln Village Court #2127, Larkspur, CA. Father needs to update his current address with the Court, and any time in the future that he changes his residence.

Counsel for Father shall prepare the order.

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